

KENTUCKY REAL ESTATE PURCHASE AGREEMENT

This Real Estate Purchase Agreement ("Agreement") is entered into as of the date of the last signature below ("Effective Date") by and between:

Seller:

Buyer: _____

For purposes of this Agreement, "Seller" means the party identified as Seller above. If Seller is assigning a contractual interest in the Property rather than conveying title to the Property, Seller shall be deemed the "Assignor," and Buyer shall be deemed the "Assignee." In such case, references in this Agreement to the "Property Owner" shall mean the person or entity holding legal title to the Property under the underlying purchase agreement. When Seller holds legal title to the Property, Seller and Property Owner shall mean the same party.

1. PROPERTY

Seller agrees to sell or assign, as applicable, Seller's interest in the real property located at:

Property Address:

Parcel Number(s):

Buyer agrees to purchase the Property or accept Seller's contractual interest therein, as applicable. Together with all improvements, fixtures, easements, rights, and appurtenances belonging to the Property ("Property").

2. PURCHASE PRICE

The total purchase price shall be:

\$

Payable as follows:

Earnest Money Deposit: \$

Balance Due at Closing: \$

The Earnest Money shall be credited toward the Purchase Price at closing.

3. EARNEST MONEY

Buyer shall deposit the Earnest Money with:

Escrow/Title Company:

within 5 calendar days, beginning the day following the Effective Date.

If Buyer fails to deposit the Earnest Money within this timeframe, Seller may, at Seller's sole discretion and without further obligation to Buyer, terminate this Agreement by written notice to Buyer.

The Earnest Money shall be held in escrow and applied to the Purchase Price at closing.

4. FINANCING

Buyer intends to purchase the Property using:

☐ Cash — Buyer will purchase the Property without financing and shall provide Proof of Funds as required by this Agreement.

☐ Conventional Financing

☐ Hard Money

☐ Other:

Additional explanation of terms:

If financing is required, this Agreement is contingent upon Buyer obtaining financing sufficient to complete the purchase on terms acceptable to Buyer.

If Buyer is unable to obtain the required financing, Buyer may terminate this Agreement by written notice to Seller, and the Earnest Money shall be returned to Buyer.

5. SELLER-PAID CLOSING COSTS

Seller agrees to pay or credit Buyer toward Buyer's allowable closing costs and prepaid expenses at closing in the amount of:

\$

Such credit shall be applied only to costs and expenses permitted by Buyer's lender, if applicable, and applicable law. Any unused portion of the agreed credit shall not be paid to Buyer as cash or otherwise increase the Purchase Price.

Seller's obligation under this section shall be reflected on the final closing statement.

6. PROOF OF FUNDS

Buyer represents that Buyer has, or reasonably expects to obtain, sufficient funds or financing to complete the purchase in accordance with this Agreement.

Buyer shall provide reasonable evidence of funds or financing within 5 calendar days, beginning the day following the Effective Date.

If Buyer fails to provide proof of funds or financing within this timeframe, Seller may, at Seller's sole discretion and without further obligation to Buyer, terminate this Agreement by written notice to Buyer.

7. INSPECTION / DUE DILIGENCE PERIOD

☐ **Inspection Contingency Waived** – Buyer waives the right to conduct any and all real estate inspections.

☐ **Inspection Contingency Applies**

Buyer shall have _____ calendar days following the Effective Date ("Due Diligence Period") to conduct, at Buyer's expense, any inspections, investigations, testing, and due diligence Buyer deems appropriate regarding the Property.

Buyer and Buyer's representatives shall have reasonable access to the Property during this period. Due diligence may include, but is not limited to, the Property's **physical condition, structural and mechanical systems, environmental conditions, utilities, survey and boundaries, title, zoning and permitted uses, development potential, leases and tenants, financial information, permits, governmental requirements, and any other matter affecting the Property or Buyer's intended use.**

Seller shall provide reasonable access to information and documents in Seller's possession or control that are relevant to Buyer's due diligence.

Buyer may terminate this Agreement for any reason or no reason by providing written notice to Seller before expiration of the Due Diligence Period. If Buyer timely terminates, the Earnest Money shall be returned to Buyer.

If Buyer does not terminate before expiration of the Due Diligence Period, Buyer shall be deemed to have accepted the Property subject to the remaining terms and contingencies of this Agreement.

Unless otherwise agreed in writing, the Property is being purchased in its present condition, subject to Buyer's rights under this Agreement and applicable law.

8. APPRAISAL CONTINGENCY

☐ **Appraisal Contingency Waived**

☐ **Appraisal Contingency Applies**

If an appraisal is required and the appraised value is less than the Purchase Price, Buyer may:

1. Proceed with the purchase;
2. Request that the Purchase Price be reduced;
3. Pay the difference between the appraised value and Purchase Price; or
4. Terminate this Agreement by written notice to Seller.

If Buyer terminates under this section, the Earnest Money shall be returned to Buyer.

9. REAL ESTATE AGENT / BROKERAGE

Buyer's Real Estate Agent

☐ Buyer is not represented by a real estate agent.

☐ Buyer is represented by a real estate agent.

Agent Name:

Brokerage Name:

Commission:

If a percentage-based commission is entered, the commission shall be calculated based on the total Purchase Price stated in this Agreement, unless otherwise provided in a separate written agreement.

Commission Paid By: ☐ Buyer ☐ Seller

If the commission is to be paid by Seller, the amount specified above shall be reflected as a Seller-paid expense on the closing statement. If the commission is to be paid by Buyer, Buyer shall be solely responsible for payment of the commission pursuant to any separate agreement between Buyer and Buyer's agent.

The parties acknowledge that any real estate agent or brokerage identified above is not a party to this Agreement and that any representation agreement or commission agreement between Buyer and Buyer's agent is separate from this Agreement.

If applicable, Buyer certifies that Buyer has disclosed Buyer's real estate license status as required by Kentucky law.

10. PERSONAL PROPERTY

The following personal property and items located at the Property are:

To Be Included in the Sale:

Excluded From the Sale:

Unless specifically identified above as excluded, all fixtures and items permanently attached to or installed at the Property shall remain with the Property and be included in the sale, to the extent permitted by law.

Any personal property specifically identified as included shall be transferred to Buyer at closing in its present condition, unless otherwise agreed in writing.

11. ADDITIONAL TERMS / CONDITIONS

The following additional terms and conditions, if any, are incorporated into and made a part of this Agreement:

Any additional terms or conditions entered above shall be binding upon Buyer and Seller and shall be considered part of this Agreement. In the event of a conflict between these Additional Terms / Conditions and another provision of this Agreement, the specific Additional Terms / Conditions entered above shall control.

12. CLOSING

Closing shall occur on or before:

Closing Date:

Closing shall take place through a title/escrow company mutually agreed upon by the parties.

Possession shall be delivered:

☐ At Closing

☐ Property Owner shall be granted _____ days of post-closing occupancy following the date of closing. Property Owner shall vacate the Property and deliver possession to Buyer no later than 5:00 PM on the final day of the agreed occupancy period, at which time all keys, garage remotes, access codes, and other means of access to the Property shall be delivered to Buyer.

During the post-closing occupancy period, Property Owner shall remain responsible for all utilities, routine maintenance, and insurance covering Property Owner's personal property and occupancy. Property Owner shall maintain the Property in substantially the same condition as of closing and shall be responsible for any damage to the Property caused by Property Owner or Property Owner's occupants during the occupancy period.

Buyer shall be responsible for obtaining and maintaining any property insurance coverage required following closing. Buyer acknowledges that Buyer's property insurance does not insure Property Owner's personal property or belongings.

Property Owner shall not make any alterations to the Property during the occupancy period without Buyer's prior written consent.

At the conclusion of the occupancy period, Property Owner shall surrender the Property free of personal belongings and debris, broom-clean, ordinary wear and tear excepted.

13. TITLE

The Property Owner shall convey good and marketable title to the Property by deed acceptable for recording and reasonably satisfactory to the title company, free and clear of monetary liens and encumbrances, except for permitted easements, restrictions, covenants, conditions, and matters of record that do not materially interfere with Buyer's intended use of the Property.

Buyer shall have the right to obtain a title examination and/or title insurance at Buyer's expense.

If title defects are discovered that the Property Owner cannot or will not cure prior to closing, or that otherwise prevent the Property Owner from conveying the required title, Buyer may terminate this Agreement and receive a return of the Earnest Money.

14. HOA / CONDOMINIUM / ASSOCIATION

☐ Property is not subject to an HOA or condominium association.

☐ Property is subject to an HOA/condominium association.

Amount: \$

Paid:

Included in HOA:

If the Property is subject to a homeowner's association, condominium association, or other owners' association, Property Owner shall provide Buyer with any known applicable declarations, bylaws, rules, regulations, assessments, and other association information in Property Owner's possession. Seller shall provide Buyer with any such information in Seller's possession or control and shall reasonably cooperate in obtaining additional information from Property Owner or the applicable association.

For any condominium unit, Property Owner shall provide all condominium documents, certificates, disclosures, and other information required by applicable Kentucky law. Buyer acknowledges that certain statutory rights and deadlines may apply to condominium purchases based upon the delivery of required condominium documents.

Buyer acknowledges that Buyer is responsible for reviewing any applicable declarations, bylaws, rules, regulations, fees, and other association documents before closing.

Property Owner shall disclose any known HOA or condominium assessments, violations, liens, or other amounts currently due or known to Property Owner.

Unless otherwise agreed, regular assessments attributable to periods before closing shall be the responsibility of Property Owner, and assessments attributable to periods after closing shall be the responsibility of Buyer.

15. LEASED PROPERTY / TENANCIES

If any portion of the Property is leased or occupied, Property Owner shall disclose all existing leases, rental agreements, month-to-month arrangements, tenant agreements, and other occupancy arrangements affecting the Property. Seller shall provide Buyer with copies of all such agreements and related documents in Seller's possession or control.

Seller shall also provide Buyer, to the extent applicable and available and in Seller's possession or control, with:

- Current rent roll or rental schedule;
- Current monthly rent and other recurring tenant charges;
- Security deposits and prepaid rent;
- Records of rent payments and known delinquencies;
- Notices of default, eviction, termination, or disputes;
- Tenant concessions or outstanding obligations;
- Existing property management agreements;
- Information regarding utilities paid by tenants and/or Property Owner;
- Any known tenant claims, disputes, or pending litigation;
- Any other material agreements or obligations affecting the tenancy.

Unless otherwise agreed in writing, all leases and tenant occupancy agreements shall remain in effect through closing and shall be assigned or transferred to Buyer at closing to the extent permitted by law and the applicable agreements.

Property Owner shall transfer to Buyer at closing all tenant security deposits, prepaid rents, and other tenant funds that are required to be transferred in connection with the sale, with appropriate credits or adjustments reflected on the closing statement.

Property Owner shall not, without Buyer's prior written consent, enter into any new lease, modify or terminate any existing lease, accept prepaid rent, alter rental terms, or enter into any material agreement affecting the Property after the Effective Date.

Buyer shall have the right during the Due Diligence Period to review all leases, tenant information, and related documentation and to independently verify the income, expenses, occupancy, and other information relating to the leased portion of the Property.

16. TAXES, ASSESSMENTS, AND PRORATIONS

Real estate taxes, rents, assessments, association dues, and other customary items shall be prorated as of the closing date in accordance with customary local practice and the closing statement.

Any known special assessment attributable to a period before closing shall be paid by Property Owner unless otherwise agreed in writing.

17. PROPERTY DISCLOSURES

Property Owner shall provide all disclosures required by applicable federal, state, or local law, including any Kentucky Seller's Disclosure of Property Condition form required by applicable law.

In an assignment transaction, Seller shall provide Buyer with any property disclosures in Seller's possession or control and shall reasonably cooperate in obtaining disclosures required from Property Owner.

Any required seller disclosure form shall be provided as a separate document and shall not be replaced or satisfied solely by this Agreement.

For residential property built before 1978, the parties acknowledge that applicable federal lead-based paint disclosure requirements may apply before the Buyer becomes obligated under the contract.

18. ASSIGNMENT — NOT PERMITTED

Buyer **may not assign, transfer, sell, convey, or otherwise transfer** Buyer's rights or obligations under this Agreement to any other person or entity without the prior written consent of Seller.

Any attempted assignment or transfer without Seller's prior written consent shall constitute a default under this Agreement.

Buyer acknowledges that this Agreement is intended to be between the named Buyer and Seller and that Buyer is purchasing the Property for Buyer's own account and not for the purpose of assigning this Agreement to another purchaser.

19. CLOSING COSTS

Unless otherwise agreed:

Property Owner shall pay: customary seller closing costs, deed preparation, release of Property Owner's liens, and other costs customarily charged to the seller.

Buyer shall pay: customary buyer closing costs, title insurance selected by Buyer, lender costs, recording fees attributable to Buyer's financing, and other costs customarily charged to the buyer.

20. PROPERTY CONDITION

Except as otherwise provided in this Agreement, Property Owner makes no warranties concerning the condition of the Property beyond those required by applicable law. Seller makes no independent representation or warranty concerning the physical condition of the Property except as expressly stated in this Agreement or the underlying purchase agreement.

Property Owner shall maintain the Property in substantially its present condition through closing, ordinary wear and casualty excepted.

21. RISK OF LOSS

If the Property is materially damaged by fire, casualty, or other event before closing, Buyer may elect to:

1. Terminate this Agreement and receive a return of the Earnest Money; or
2. Proceed with the purchase and receive any insurance proceeds or other rights available to Property Owner relating to the damage, to the extent permitted by law.

22. DEFAULT

If Buyer defaults without legal excuse, Seller may retain the Earnest Money as liquidated damages, unless otherwise prohibited by law.

If Seller defaults, Buyer may elect to:

1. Terminate this Agreement and receive the return of the Earnest Money;
2. Seek specific performance; or

3. Pursue any other remedy available under applicable law.

23. ELECTRONIC SIGNATURES AND RECORDS

The parties agree to conduct this transaction, including the execution and delivery of this Agreement and related documents, by electronic means.

The parties agree that electronic signatures, electronic records, electronic copies, and electronically delivered notices shall have the same force and effect as manually signed originals to the extent permitted by applicable law.

Each party consents to the use of electronic signatures and electronic records and acknowledges that such party has the ability to access, review, and retain electronic copies of documents related to this transaction.

24. PLATFORM DISCLAIMER

BetterOffMarket is not a party to this Agreement and, unless expressly stated otherwise, does not represent Buyer or Seller, does not provide legal advice, and does not guarantee the accuracy of information provided by either party.

BetterOffMarket does not determine whether a transaction constitutes a wholesale, assignment, or other regulated transaction, or whether any disclosure, consent, or other legal requirement applies. Users are responsible for obtaining legal or professional advice regarding their transactions.

25. NOTICES

Any notice required under this Agreement shall be provided in writing and may be delivered by personal delivery, email, electronic signing platform, or other method agreed upon by the parties.

Seller Email: _____

Buyer Email: _____

26. ENTIRE AGREEMENT

This Agreement contains the entire agreement between Buyer and Seller concerning the transaction contemplated herein and supersedes all prior discussions and representations between Buyer and Seller concerning such transaction. In an assignment transaction, the underlying purchase agreement is incorporated by reference and shall remain in full force and effect with respect to the rights and obligations of the parties thereto. In the event of a conflict, the underlying purchase agreement shall control with respect to the purchase and conveyance of the Property, while this Agreement shall control with respect to the assignment between Seller and Buyer.

Any amendment or modification must be in writing and signed by Buyer and Seller.

27. GOVERNING LAW

This Agreement shall be governed by and interpreted under the laws of the Commonwealth of Kentucky.

28. ACCEPTANCE

This Agreement shall become binding upon execution by both Buyer and Seller.

The date of the last party's signature shall constitute the Effective Date.

BUYER

Name: _____

]

Signature: _____ Date: _____

Name: _____

Signature: _____ Date: _____

SELLER

Name: _____

Signature: _____ Date: _____

Name: _____

Signature: _____ Date: _____